

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
TIASHA TAYLOR,

Plaintiff,

-against-

CITY OF NEW YORK, DET. MARCELO RAZZO,
POLICE OFFICER ELIAS BLUNT, "JOHN DOES
1-2" PERSONS EMPLOYED BY THE NEW YORK
CITY POLICE DEPARTMENT, and SHAKIELA
VENNING,Defendants.
----- XSUMMONS

Index No.: _____

Date Filed: _____

Plaintiff designates
New York County
as the place of trialThe basis of venue is
CPLR §§ 503(a) & 504(3)

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
October 19, 2016Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
TIASHA TAYLOR
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7065-AA

Defendants' Addresses:

CITY OF NEW YORK, Claim No. 2016PI003022, 100 Church Street, New York, NY 10007

DETECTIVE MARCELO RAZZO, Shield No. 7576, 24th Precinct 151 West 100th Street, New York, NY 10025

POLICE OFFICER ELIAS BLUNT, Shield No. 25474, 24th Precinct Housing Bureau Police Service Area 6, Manhattan Borough, 2770 Fredrick Douglass Blvd., New York, NY 10039

JOHN DOES 1-2, persons employed by The New York City Police Department, One Police Plaza, New York, NY 10007

SHAKIELA VENNING, 830 Amsterdam Avenue, New York, NY 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TIASHA TAYLOR,

Plaintiff,

-against-

CITY OF NEW YORK, DET. MARCELO RAZZO,
POLICE OFFICER ELIAS BLUNT, "JOHN DOES
1-2", PERSONS EMPLOYED BY THE NEW YORK
CITY POLICE DEPARTMENT, and SHAKIELA
VENNING,

Defendants.

x

VERIFIED COMPLAINT

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Index No.: _____

TIASHA TAYLOR (hereinafter the "Plaintiff"), by her attorneys, ATESHOGLOU & AIELLO, P.C., complaining against Defendants CITY OF NEW YORK, DET. MARCELO RAZZO, POLICE OFFICER ELIAS BLUNT, "JOHN DOES 1-2", PERSONS EMPLOYED BY THE NEW YORK CITY POLICE DEPARTMENT, and SHAKIELA VENNING (hereinafter collectively the "Defendants"), upon information and belief, alleges as follows:

THE PARTIES

1. At all relevant times, Plaintiff was and is a resident of the County, City and State of New York.
2. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the "CITY") was and is a municipal corporation incorporated and existing under the laws of New York State.
3. At all relevant times, the New York City Police Department (hereinafter the "NYPD") was and is an agency of Defendant CITY.
4. At all relevant times, Defendant CITY operated, controlled and managed the NYPD.

5. At all relevant times, Defendant NEW YORK CITY POLICE DETECTIVE MARCELO RAZZO, Shield No. 7576 of the 24th Precinct (hereinafter “DET. RAZZO”) was and is an employee of Defendant CITY, and the NYPD .

6. At all relevant times, Defendant NEW YORK CITY POLICE OFFICER ELIAS BLUNT, Shield No. 25474 of the 24th Precinct Housing Bureau PSA 6 (hereinafter “P.O. BLUNT”) was and is an employee of Defendant CITY, and the NYPD.

7. At all relevant times, the names of Defendants “JOHN DOES 1-2” are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the stop, detention, search, arrest, prosecution, and confinement of Plaintiff, whose names are presently unknown to Plaintiff.

8. At all relevant times, Defendants JOHN DOES 1-2 were employees of Defendant CITY, and the NYPD.

9. At all relevant times, Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2 (hereinafter collectively the “Officers”) were acting within their scope of employment as NYPD police officers employed by Defendant CITY.

10. At all relevant times, Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, prior to December 2013, were each individually hired, screened, trained, and supervised by Defendant CITY, including its agencies and including the NYPD and all supervisory officers of the aforementioned Defendant Officers.

11. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2 are sued in their individual and official capacities.

12. At all relevant times, Defendant SHAKIELA VENNING (hereinafter “VENNING”) was and is a resident of the County, City and State of New York.

STATEMENT OF FACTS

13. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest and / or criminal prosecution of Plaintiff, and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits, and therefore the complaint has been prepared without the benefit of full discovery.

14. The allegations set forth in paragraphs “1” through “13” inclusive are incorporated herein as if fully set forth.

Timeliness and Notice of Claim

15. On or about January 19, 2016, Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Sections 50(e) and (i). The Notice of Claim set forth the name and address of Plaintiff, her attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

16. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

17. On or about April 21, 2016 a 50(h) hearing was held in accordance with General Municipal Law Section 50(h).

18. This action is being commenced within one year of the date on which the claims accrued, when all criminal charges against Plaintiff were dismissed on October 22, 2015.

19. Pursuant to CPLR § 215(8)(a), this action has been commenced within one year from the termination of the criminal action against Plaintiff that was commenced with respect to

the event or occurrence from which claims governed by CPLR § 215(3) arose, including assault, battery, false imprisonment, malicious prosecution, libel, slander, and words causing special damages.

Arrests and Criminal Prosecution

20. On or about January 15, 2014 at or near 830 Amsterdam Avenue, in the City, County, and State of New York at approximately 4:30 p.m., Plaintiff was wrongfully detained and arrested by Defendant Officers, in connection with an incident which allegedly occurred on or about December 9, 2013 at 830 Amsterdam Avenue, in the City, County, and State of New York.

21. Plaintiff was charged with NYPL § 120.00(1) Assault in the Third Degree, NYPL § 120.00(2) Assault in the Third Degree, NYPL § 110/120.00(1) Attempted Assault in the Third Degree, and NYPL § 240.26(1) Harrassment in the Second Degree.

22. Defendants wrongfully commenced and continued a prosecution against Plaintiff without probable cause or justification under Docket No. 2014NY011293.

23. An Order of Protection was issued in New York County Criminal Court by Hon. Judge Dominguez on March 4, 2014 in conjunction with Docket No. 2014NY011293. The order expired on September 3, 2014 and ordered Plaintiff to stay away from Defendant VENNING and refrain from contacting her.

24. Plaintiff abided by the aforesaid Order of Protection.

25. On or about March 27, 2014 at or near 830 Amsterdam Avenue, in the City, County, and State of New York, Defendant VENNING intentionally engaged with and contacted Plaintiff by stepping into an elevator with Plaintiff, in Plaintiff's building, despite the fact that VENNING knew an Order of Protection existed.

26. On the aforesaid date, Defendant VENNING did assault Plaintiff when Defendant

VENNING approached Plaintiff in the elevator, attempted to provoke Plaintiff, and threatened Plaintiff (hereinafter the “Assault”).

27. On or about March 27, 2014 at or near 830 Amsterdam Avenue, in the City, County, and State of New York, Defendant VENNING falsely accused Plaintiff of committing a crime and made a false statement to the NYPD and the New York County District Attorney’s Office by stating that Plaintiff had intentionally violated the court mandated Order of Protection by approaching Defendant VENNING in the elevator, and further, that Plaintiff had verbally threatened Defendant VENNING.

28. Defendant VENNING knowingly, maliciously and / or recklessly made the aforesaid false accusations of, and statement about, Plaintiff.

29. On or about March 27, 2014 at or near 830 Amsterdam Avenue, in the City, County, and State of New York at approximately 4:30 p.m., Plaintiff was wrongfully detained and arrested by Defendants, in connection with the aforesaid false accusations made by Defendant VENNING. Plaintiff was not involved in any criminal or unlawful activity.

30. Plaintiff was charged with NYPL § 215.50(3) Criminal Contempt in the Third Degree.

31. Defendants wrongfully commenced and continued a prosecution against Plaintiff without probable cause or justification under Docket No. 2014NY024265.

32. The prosecution of all of the aforesaid criminal charges was instituted and continued with malice, bad faith, and deliberate indifference to Plaintiff’s rights.

33. By instituting and continuing the malicious prosecution, Defendants acted with a reckless and grossly negligent disregard of Plaintiff’s rights.

34. During the aforesaid arrest of March 27, 2014, Plaintiff was taken to Central

Booking for processing, where Defendant P.O. BLUNT did commit assault and battery against Plaintiff (hereinafter the “Assault and Battery”).

35. During the aforesaid arrest of March 27, 2014, Plaintiff was taken from Central Booking to Bellevue Hospital Center located at or near 462 First Avenue, New York, New York 10016 for emergency medical treatment.

36. Defendants’ actions and / or omissions caused Plaintiff to be incarcerated for a combined period in excess of twenty-seven (27) hours, and to make numerous appearances in court to defend herself against the aforesaid charges.

37. The prosecution caused Plaintiff to expend money, costs, expenses and fees in order to defend against the baseless criminal charges.

38. Defendants’ actions and / or omissions caused Plaintiff to suffer significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, damage to her reputation, financial harm, humiliation, embarrassment and fear, all of which continue to this day.

39. All criminal charges against Plaintiff were dismissed on October 22, 2015.

CAUSES OF ACTION

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
FALSE IMPRISONMENT**

40. The allegations set forth in paragraphs “1” through “39” inclusive are incorporated herein as if fully set forth.

Defendants intended to cause the wrongful arrest, seizure and imprisonment of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

41. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of her liberty, and caused her to be taken into police custody, and charged with a crime she did not commit.

42. Plaintiff was thereafter incarcerated for numerous hours.

43. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful imprisonment of Plaintiff.

44. Plaintiff was aware of the confinement and did not consent to said confinement.

45. The aforementioned confinement was not privileged in any way and was without legal justification.

46. As a direct and proximate cause of Defendants’ acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

47. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant liable to Plaintiff for punitive damages.

48. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS CITY AND P.O. BLUNT
ASSAULT AND BATTERY**

49. The allegations set forth in paragraphs “1” through “48” inclusive are incorporated herein as if fully set forth.

50. The wrongful and forceful touching committed by Defendant P.O. BLUNT against Plaintiff constituted an assault of Plaintiff.

51. The wrongful and forceful touching committed by Defendant P.O. BLUNT against Plaintiff constituted battery of Plaintiff.

52. Defendant P.O. BLUNT, acting within the scope of his employment and authority, intended to make or intended to threaten to make offensive bodily contact with Plaintiff.

53. Defendant P.O. BLUNT knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute an assault of Plaintiff.

54. Defendant P.O. BLUNT knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute a battery of Plaintiff.

55. Plaintiff was aware of the offensive bodily contact and Plaintiff did not consent or acquiesce to it.

56. As a direct and proximate cause of the Assault and Battery, Plaintiff was caused to

suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

57. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

58. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
MALICIOUS PROSECUTION**

59. The allegations set forth in paragraphs “1” through “58” inclusive are incorporated herein as if fully set forth.

60. Defendants caused the criminal prosecution to be initiated and continued against Plaintiff despite having knowledge that Plaintiff had not committed the crimes. The prosecution was unreasonably instituted and continued without probable cause, without any reasonable basis to believe that Plaintiff had committed a crime, and with malice, bad faith and deliberate indifference to Plaintiff’s rights.

61. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, acting in concert and within the scope of their employment and authority, engaged in a deliberate and unjustified course of action to prosecute Plaintiff, and to secure a conviction based upon fabricated evidence, for crimes that Plaintiff did not commit, without probable cause, without any reasonably reliable information that Plaintiff had committed any illegal act, where any reasonable investigation of the

relevant facts and circumstances would have revealed that Plaintiff had not committed any illegal act, and that any allegations indicating that Plaintiff had committed any crime were false and baseless, and that there was no legal justification for the prosecution of Plaintiff.

62. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

63. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

64. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
ABUSE OF PROCESS**

65. The allegations set forth in paragraphs "1" through "64" inclusive are incorporated herein as if fully set forth.

66. Defendants, acting in concert and within the scope of their employment and authority, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts, with the purpose of activating the process with intent to harm Plaintiff without economic or social excuse or justification, to obtain a collateral advantage or corresponding detriment to Plaintiff which was outside the legitimate purpose of the process. Defendants' collateral objectives included the concealment of Defendants' own criminal acts in

knowingly causing the arrest and false imprisonment of Plaintiff, and arresting Plaintiff without legal basis, justification or probable cause.

67. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

68. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

69. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
INTENTIONAL / NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

70. The allegations set forth in paragraphs "1" through "69" inclusive are incorporated herein as if fully set forth.

71. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, acting in concert and within the scope of their employment and authority, and Defendant VENNING acting in her individual capacity, engaged in conduct that was extreme, outrageous, shocking, and offensive and which exceeded all standards of reasonable behavior, and was intended, and reasonably expected to cause severe emotional distress to Plaintiff, and did in fact cause Plaintiff extreme emotional distress.

72. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, acting in concert and within the scope of their employment and authority, and Defendant VENNING acting in her individual capacity, engaged in conduct that was extreme, outrageous, shocking, and offensive and which exceeded all standards of reasonable behavior, carelessly, negligently, and with disregard for the mental health, and the psychological and emotional well-being of Plaintiff, which did in fact cause Plaintiff extreme emotional distress.

73. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

74. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

75. Defendant CITY is also liable for damages sustained by Plaintiff as a result of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANTS CITY,
DET. RAZZO, P.O. BLUNT, AND JOHN DOES 1-2 FOR
NEGLIGENT HIRING, SUPERVISION, RETENTION AND TRAINING**

76. The allegations set forth in paragraphs "1" through "75" inclusive are incorporated herein as if fully set forth.

77. Defendant CITY failed to use reasonable care in screening, hiring, supervising, retention and training of NYPD employees generally, and Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, specifically, as well as any and all other officers, employees, or

agents of Defendant CITY that were involved in the stop, detention, search, handcuffing, arrest, and / or prosecution of Plaintiff.

78. Defendant CITY failed to use reasonable care in training, educating and informing NYPD employees generally, and Defendants Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, specifically, as well as any and all other officers, employees, or agents of Defendant CITY that were involved in the stop, detention, search, handcuffing, arrest, and / or prosecution of Plaintiff.

79. Defendant CITY failed to exercise reasonable care in the hiring, supervising, retention and training of Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, thereby breaching its duty to Plaintiff as well as to the public, to exercise reasonable care in the hiring, supervision, retention, and training of employees.

80. Defendant CITY should have known of the propensity of Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, to commit injurious acts.

81. Defendant CITY was negligent in failing to properly hire, supervise, retain and train its employees generally, and DET. LOTUFO, and JOHN DOES 1-2, specifically.

82. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

83. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

84. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE / GROSS NEGLIGENCE**

85. The allegations set forth in paragraphs “1” through “84” inclusive are incorporated herein as if fully set forth.

86. Defendants’ actions in causing the aforesaid arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff.

87. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, acting in concert and within the scope of their employment and authority, failed to exercise reasonable care in the performance of their duties, failed to adequately evaluate the relevant facts and circumstances, failed to take adequate precautions for the safety and well-being of Plaintiff, acted with utter disregard for the safety and well-being of Plaintiff, and were otherwise negligent and grossly negligent, which negligence and gross negligence was the proximate cause of injuries and damages sustained by Plaintiff without any negligence on the part of Plaintiff contributing thereto.

88. Defendants DET. RAZZO, P.O. BLUNT and JOHN DOES 1-2 further breached their duty of care to investigate before affecting the seizure of a citizen and in their continued prosecution of Plaintiff.

89. As a direct and proximate cause of the Defendants’ negligence / gross negligence, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

90. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

91. Defendant CITY is liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
AGAINST DEFENDANT VENNING FOR
DEFAMATION OF CHARACTER
SLANDER / LIBEL / WORDS CAUSING SPECIAL DAMAGES**

92. The allegations set forth in paragraphs “1” through “91” inclusive are incorporated herein as if fully set forth.

93. Defendant VENNING made a false and defamatory statement that she knew or should have known was false.

94. The false and defamatory statement made by Defendant VENNING clearly identified Plaintiff as the target.

95. Defendant VENNING published the false and defamatory statement to the New York County District Attorney’s Office on March 27, 2014, and continued to make false and defamatory statements throughout the duration of the criminal prosecution against Plaintiff.

96. The defamation damaged the character of Plaintiff.

97. The defamation has resulted in harm to Plaintiff’s personal and professional reputation, financial harm, and mental and physical anguish.

98. As a direct and proximate cause of Defendants’ acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further

pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

99. The conduct of Defendant VENNING set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant liable to Plaintiff for punitive damages.

**AS AND FOR A NINTH CAUSE OF ACTION
AGAINST DEFENDANT VENNING FOR
ASSAULT**

100. The allegations set forth in paragraphs “1” through “99” inclusive are incorporated herein as if fully set forth.

101. The threat to fight made by Defendant VENNING against Plaintiff constituted an assault of Plaintiff.

102. Defendant VENNING intended to make or intended to threaten to make offensive bodily contact with Plaintiff.

103. Defendant VENNING knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute an assault of Plaintiff.

104. As a direct and proximate cause of the Assault, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

105. The conduct of Defendant VENNING set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant liable to Plaintiff for punitive damages.

**AS AND FOR A TENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
VIOLATION OF 42 U.S.C. § 1983 AND THE FOURTH AND FOURTEENTH
AMENDMENTS OF THE U.S. CONSTITUTION
MUNICIPAL LIABILITY “MONELL” CLAIM**

106. The allegations set forth in paragraphs “1” through “105” inclusive are incorporated herein as if fully set forth.

107. Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, each individually and collectively, within the scope of their employment and authority and under color of state law, engaged in conduct which constituted customs, policies, procedures, rules or usages of the NYPD and the specific NYPD precinct(s) to which they were assigned and which were in violation of the rights of individuals as secured by the United States Constitution.

108. The aforesaid customs, policies, procedures, rules or usages of the NYPD and the specific NYPD precinct(s) included but were not limited to, stopping, detaining, searching, arresting, imprisoning or incarcerating the arrestee, without legal justification or probable cause, and not intervening when other officers violated an individual’s civil and constitutional rights.

109. The aforesaid conduct was consistent with the institutionalized practices of the NYPD which was known and sanctioned by Defendant CITY.

110. Despite knowledge of the institutionalized practices of the NYPD, Defendant CITY took no effective actions to end or prevent such practices.

111. Defendant CITY had prior notice of the propensity of Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, for unlawfully stopping, detaining, searching, arresting, imprisoning or incarcerating arrestees, and abusing their authority, but took no steps to end or prevent them from doing so.

112. Defendant CITY had prior notice that Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, other applicable laws, and federal and state statutory and constitutional protections, but took no steps to ensure that they were provided with adequate appropriate training.

113. Defendant CITY authorized, tolerated and ratified the misconduct of its police officers generally, and Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, specifically, by failing to discipline police officers, failing to take adequate precautions in hiring, educating, training, promoting and retaining police officers, failing to turn over evidence of unlawful and criminal acts to prosecutors, failing to establish and maintain a meaningful system for responding to complaints of police misconduct, which constituted deliberate indifference by Defendant CITY to the rights secured by the United States Constitution, and indifference to physical safety and well-being.

114. As a direct and proximate cause of Defendants' deprivation of the rights of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

115. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS CITY,
DET. RAZZO, P.O. BLUNT, AND JOHN DOES 1-2 FOR
VIOLATION OF 42 U.S.C. § 1983, THE U.S. CONSTITUTION
AND THE CONSTITUTION OF THE STATE OF NEW YORK**

116. The allegations set forth in paragraphs “1” through “115” inclusive are incorporated herein as if fully set forth.

117. As a direct result of the acts, omissions, and policies of Defendant CITY, Defendants DET. RAZZO, P.O. BLUNT, and JOHN DOES 1-2, acting under color of State Law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of her rights, privileges, and immunities guaranteed under 42 U.S.C. § 1983 and the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution.

118. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from malicious prosecution;
- b. Freedom from abuse of process;
- c. Freedom from unlawful seizure; and
- d. Freedom from loss of liberty.

119. Defendants subjected Plaintiff to such deprivations, either in a malicious and /or reckless disregard of Plaintiff’s rights or with deliberate indifference to those rights protected under the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution.

120. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities guaranteed under Article 1, Sections 6, 8 and 12 of the New York State Constitution.

121. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was

deprived of her rights, privileges, and immunities guaranteed under New York Common Law to be free from malicious prosecution, abuse of process and other related rights violations.

122. As a direct and proximate cause of Defendants' violations of rights secured by 42 U.S.C. § 1983, the United States Constitution and the New York State Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

123. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages in an amount to be determined at trial, and for Attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, DET. MARCELO RAZZO, POLICE OFFICER ELIAS BLUNT, "JOHN DOES 1-2", PERSONS EMPLOYED BY THE NEW YORK CITY POLICE DEPARTMENT, and SHAKIELA VENNING, individually and collectively, in an amount which exceeds the jurisdictional limits of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
October 19, 2016

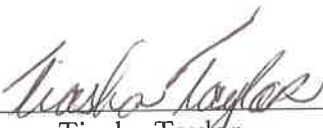


Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
TIASHA TAYLOR
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7065-AA

VERIFICATION

STATE OF NEW YORK)
 S.S.:
COUNTY OF NEW YORK)

Tiasha Taylor, being duly sworn deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.



Tiasha Taylor

Sworn to before me this
19th day of October, 2016



Notary Public

PHILIP AIELLO
Notary Public, State of New York
No. 02A15076944
Qualified in New York County
Commission Expires April 28, 2019